

**Court No. - 21**

**Case :-** WRIT - C No. - 3629 of 2023

**Petitioner :-** Majid Khan

**Respondent :-** Paschimanchal Vidyut Vitran Nigam Limited And Another

**Counsel for Petitioner :-** Rakesh Kumar Mishra

**Counsel for Respondent :-** Pranjal Mehrotra

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Vikram D. Chauhan,J.**

Learned counsel for the respondent Electricity Department prays for and is granted one week's time to obtain instructions.

List as fresh on 13.02.2023.

(Vikram D. Chauhan, J.)      (Manoj Kumar Gupta, J.)

**Order Date :-** 2.2.2023

SL

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**Counsel for Respondent :-** Pranjal Mehrotra

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Syed Qamar Hasan Rizvi,J.**

The instant petition has been filed praying for quashing of the demand notice dated 27.6.2021 issued by respondent no.2 for recovery of electricity dues in a case of theft of electricity.

Sri Pranjal Mehrotra, learned counsel appearing on behalf of respondent Electricity Department, on instructions, states that the impugned demand notice has been withdrawn and that the respondents will pass a fresh order after affording opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.)      (Manoj Kumar Gupta, J.)

**Order Date :-** 17.2.2023

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